

Santosh Kumar v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 29 March 2024 · 2024:AHC:54144-DB · Writ - C No. 4294 of 2024 · **No interference with theft recovery; balance in three installments.**

HEADNOTE

Writ against a recovery citation for electricity-theft dues disposed of without interference. A notice of 30 October 2015 had required Rs.4,23,014; the petitioner paid Rs.1,23,039 on 31 July 2023 and, with full knowledge, never challenged the assessment, so no ground existed to disturb the citation of 12 August 2023. On his offer and the department's consent, the balance of Rs.3,00,000 with accrued interest and other charges is payable in three equal monthly installments due on 20 April, 20 May and 20 June 2024. Default causes that direction to lapse, after which the department may proceed in accordance with law.

FACTUAL SUMMARY

Santosh Kumar challenged a recovery citation of 12 August 2023 for electricity-theft dues. A notice of 30 October 2015 had required deposit of Rs.4,23,014 within fifteen days. He paid Rs.1,23,039 on 31 July 2023 and never challenged the assessment. On 14 March 2024 the department was absent and the Court stayed coercive steps. On 29 March 2024 he offered to pay the balance in installments, and departmental counsel raised no objection.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005

Recovery citation on an unchallenged theft assessment

HOLDING

Where the consumer, knowing of a theft assessment of Rs.4,23,014, does not challenge it and later pays only part, no ground is made out to interfere with the recovery citation. The writ may be disposed of by directing the balance of Rs.3,00,000 with accrued interest and other charges in three equal monthly installments; on default the direction lapses and the licensee may proceed in accordance with law. ¶ 2-6

FLAG No clause number is stated. The 1 March 2024 order asked the department to show that the procedure under the U.P. Electricity Supply Code, 2005 was followed. The 29 March 2024 order does not identify or apply any numbered clause.

PRINCIPLE TAGS

unchallenged-theft-assessment-recovery-not-interfered The Division Bench refused to interfere with the 12 August 2023 recovery citation because the petitioner, knowing of the 30 October 2015 assessment of Rs.4,23,014, never challenged it, and disposed of the writ by a consensual three-installment schedule for the balance of Rs.3,00,000 which lapses on default. ¶ 2-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PROCEDURE UNDER THE U.P. ELECTRICITY SUPPLY CODE, 2005 WAS FOLLOWED IN ISSUING THE RECOVERY.

The 1 March 2024 order called for instructions on that procedure. The 29 March 2024 order disposed of the writ on non-challenge of the assessment, without a finding on compliance. ¶ 1

